

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF AHMADLI AND OTHERS v. AZERBAIJAN

(Applications nos. 26163/22 and 7 others –
see appended list)

JUDGMENT

STRASBOURG

8 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Ahmadli and Others v. Azerbaijan,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Péter Paczolay*, President*,
Gilberto Felici,
Raffaele Sabato*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 January 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Azerbaijan lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Azerbaijani Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and their representatives and the relevant details of the applications are set out in the appended table.

4. The applicants complained under Article 11 of the Convention of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under Article 6 of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence.

7. In the leading cases of *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, 15 October 2015, *Huseynli and Others v. Azerbaijan,* nos. 67360/11 and 2 others, 11 February 2016; *Ibrahimov and Others v. Azerbaijan,*

no. 69234/11 and 2 others, 11 February 2016; *Hajibeyli and Others v. Azerbaijan* [Committee], nos. 5231/13 and 12 others, 30 June 2016; *Mehtiyev and Others v. Azerbaijan* [Committee], nos. 20589/13 and 7 others, 6 April 2017; and *Hasanov and Others v. Azerbaijan* [Committee], nos. 39919/07 and 14 others, 5 September 2019, the Court already found a violation in respect of issues similar to those in the present case.

8. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

9. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

10. The applicants submitted other complaints which also raised issues under Article 6 §§ 1 and 3 of the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose a violation of Article 6 §§ 1 and 3 of the Convention in the light of its findings in *Gafgaz Mammadov*, cited above, §§ 83-96; *Huseynli and Others*, cited above, §§ 119-24; and *Pichugin v. Russia*, no. 38623/03, §§ 187-92, 23 October 2012.

IV. APPLICATION OF ARTICLE 41 OF THE CONVENTION

11. Regard being had to the documents in its possession and to its case-law (see, in particular, *Gasimli v. Azerbaijan* [Committee], nos. 57739/18, 28 September 2023, and *Haziyev v. Azerbaijan* [Committee], nos. 38931/20, 9 November 2023), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the applications admissible;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

4. *Holds* that there has been a violation of Article 6 §§ 1 and 3 of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table for further details);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

6. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 8 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Péter Paczolay
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Articles 11 and 6 of the Convention (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial in administrative-offence proceedings)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Name of the court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
1.	26163/22 16/04/2022	**Fuad Zafar oglu AHMADLI** 1990	Zibeyda SADIGOVA Baku	Demonstration protesting the conviction of an opposition member Baku 05/10/2021 and 08/10/2021	Articles 510 and 535 of the CAO	Administrative fine of 70 Azerbaijani manats and One month's administrative detention	Baku Court of Appeal 15/11/2021 and 20/10/2021	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016).	3,400	300
2.	32307/22 08/06/2022	**Elchin Tahir oglu TEYMUROV** 1989	Elchin SADIGOV Baku	Demonstration protesting against the conviction of an opposition member Baku	Article 211 of the CAO	Twenty-five days' administrative detention	Baku Court of Appeal 08/12/2021	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87,	2,600	250

[1] Plus any tax that may be chargeable to the applicants.

[2] Plus any tax that may be chargeable to the applicants.

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Name of the court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
				01/12/2021				15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016).		
3.	32331/22 08/06/2022	**Ilham Telman oglu HUSEYNOV** 1983	Zibeyda SADIGOVA Baku	Demonstration protesting against the conviction of an opposition member Baku 01/12/2021	Article 211 of the CAO	Thirty days' administrative detention	Baku Court of Appeal 10/12/2021	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (1) – trial in camera – the hearing before the trial court was closed to public (*Pichugin v. Russia*, no. 38623/03, §§ 187-92, 23 October 2012).	2,600	250
4.	32337/22 09/06/2022	**Sayyad Arzuman oglu GULIYEV** 1996	Elchin SADIGOV Baku	Demonstration protesting against the conviction of an opposition member Baku	Article 211 of the CAO	Fifteen days' administrative detention	Baku Court of Appeal 10/12/2021	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87,	2,600	250

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Name of the court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
				01/12/2021				15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016).		
5.	32466/22 09/06/2022	**Elkhan Rustam oglu ALIYEV** 1982	Elchin SADIGOV Baku	Demonstration protesting against the conviction of an opposition member Baku 01/12/2021	Article 211 of the CAO	Twenty days' administrative detention	Baku Court of Appeal 09/12/2021	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016).	2,600	250
6.	50157/22 01/10/2022	**Aga-Ali Eldar oglu YAHYAYEV** 1983	Zibeyda SADIGOVA Baku	Spontaneous peaceful assembly for attending the court hearing Baku 20/05/2022	Articles 510 and 535 of the CAO	Thirty days' administrative detention	Baku Court of Appeal 01/06/2022	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016),	2,600	250

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								Art. 6 (1) – trial in camera – the hearing before the trial court was closed to public (*Pichugin v. Russia*, no. 38623/03, §§ 187-92, 23 October 2012).		
7.	50635/22 10/10/2022	**Imran Jalil oglu MAMMADLI** 1996	Zibeyda SADIGOVA Baku	Spontaneous peaceful assembly for attending the court hearing Baku 20/05/2022	Articles 510 and 535 of the CAO	Thirty days' administrative detention	Baku Court of Appeal 10/06/2022	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (3) (c) – free legal assistance (see *Gafgaz Mammadov*, cited above, §§ 88-94, and *Huseynli and Others*, cited above, §§ 125-34), Art. 6 (1) – trial in camera – the hearing before the trial court was closed to public (*Pichugin v. Russia*,	2,600	250

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative offence	Penalty	Final domestic decision Name of the court Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]	Amount awarded for costs and expenses per application (in euros)[2]
								no. 38623/03, §§ 187-92, 23 October 2012).		
8.	50642/22 07/10/2022	**Elgiz Elshad oglu MAMMADOV** 1990	Zibeyda SADIGOVA Baku	Spontaneous peaceful assembly for attending the court hearing Baku 20/05/2022	Articles 510 and 535 of the CAO	Thirty days' administrative detention	Baku Court of Appeal 07/06/2022	Art. 6 (1) – insufficient or manifestly unreasonable justification of court decisions (see *Gafgaz Mammadov v. Azerbaijan*, no. 60259/11, §§ 83-87, 15 October 2015, and *Huseynli and Others v. Azerbaijan*, nos. 67360/11 and 2 others, §§ 119-24, 11 February 2016), Art. 6 (3) (c) – free legal assistance (see *Gafgaz Mammadov*, cited above, §§ 88-94, and *Huseynli and Others*, cited above, §§ 125-34), Art. 6 (1) – trial in camera – the hearing before the trial court was closed to public (*Pichugin v. Russia*, no. 38623/03, §§ 187-92, 23 October 2012).	2,600	250